

5.10.2023

Orders on I.A.No.1

1. The Learned counsel for decree holder has filed the instant application u/Sec.39,40 r/w.section 151 of CPC seeking for transfer of Decree to Senio civil Judge and JMFC Court, Devanahalli, to execute the decree as Judgment Debtors are residing within the jurisdiction of aforesaid court.

2. Learned counsel for Decree Holder submitted that, judgment debtors resides and personally works for gain within the jurisdiction of above Court and therefore he prays for transfer of Decree.

3. Sec.39 of CPC enables the court which passed the decree send the decree to another court of competent jurisdiction for execution. Sec.39(a) of CPC enables the court which passed the decree may of its own motion send it for execution to any subordinate court of competent jurisdiction. The cause title of the Execution Petition and award passed in DRB.1-CFS-DIS-58/2019-20 reveals that Jdrs are residing at Devanahalli. It is submittd that J.drs have not yet, deposited the award amount. Hence, following

:: ORDER ::

Acting U/Sec. 39 (a) of CPC, the application filed by the Dhr u/Sec.151 of CPC is hereby allowed and the decree is hereby transfered to Senior Civil Judge and JMFC, Devanahalli, for

execution of award passed in DRB.1-CFS-DIS-58/2019-20.

Office to send the records to above court as per law.

Issue DTC.

XIV ACC& SJ Bengaluru.